all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department for military purposes:

TRACT NO. 1

Beginning at a point, latitude 58°40'00" N., longitude 135°40'00" W.

From the initial point by metes and bounds,

East, 4.75 miles, along the parallel of latitude to an intersection with the boundary between the Tongass National Forest and the Glacier Bay National Monument described in Proclamation No. 2330, April 18, 1939 (53 Stat. 2534);

Southeasterly, 18.5 miles, along said boundary to latitude 58°27'00" N., longitude approximately 135°18' W.;

S. 20°30' E., 8.25 miles, to the headwaters of a stream, latitude 58°20'18" N., longitude 135°13'20" W.;

Southeasterly, 9.25 miles, downstream along the right bank of said stream to its mouth, from which the northwesterly end of Ansley Island bears S. 20° E., 0.75 miles;

Northwesterly, 80 miles, along the shores of Icy Strait, Excursion Inlet, Icy Passage, Glacier Bay and Bartlett Cove at ordinary high tide, to the mouth of Bartlett River;

Northeasterly, 11 miles, upstream along the left bank of Bartlett River at ordinary high water to latitude 58°37' N., longitude approximately 135°41'30" W.;

East, 1 mile, to meridian of longitude 135°40'00" W.;

North, 3.46 miles, along the meridian to the point of beginning.

The area described, including both public and non-public lands, aggregates 219,000 acres.

TRACT NO. 2

Pleasant Island, containing approximately 11,600 acres. Located on the north side of Icy Strait between the mouth of Glacier Bay and the mouth of Excursion Inlet. Latitude 58°21'25" N., longitude 135°38'48" W.

TRACT NO. 3

Four small islands known as Porpoise Islands, containing approximately 120 acres. Located on the north side of Icy Strait near the mouth of Excursion Inlet, latitude 58° 20'00" N., longitude 135°27'54" W.

TRACT NO. 4

All that part of Point Adolphus, Chicagof Island, on the south side of Icy Strait, lying north of latitude 58°15'00" N., containing approximately 4,550 acres.

This order shall be subject to the withdrawal for lighthouse purposes made by Executive Order No. 3406 of February 13, 1921, Area No. 158, so far as such order affects the land in Tract No. 4.

This order shall take precedence over but not modify (1) the Proclamation of June 25, 1910 (44 Stat. 2578) changing the boundaries of the Tongass National Forest so as to include and exclude certain lands, and (2) Proclamation No. 2330 of April 18, 1939 (53 Stat. 2534), adding certain lands to the Glacier Bay National Monument, so far as such Proclamations affect any of the lands herein described.

In connection with the use by the War Department of the lands within the Glacier Bay National Monument, wherever possible the natural features of the Monument, including forests, wildlife, and objects of geological or historical nature, shall remain unmolested.

Upon the termination of the use of the Glacier Bay National Monument area by the War Department, all buildings and other structures except those of a strictly military technical character, erected thereon by the War Department, shall be transferred to the Department of the Interior, or shall be removed by the War Department and the sites restored as nearly as possible to their condition at the time of the issuance of this order, at the option of the Secretary of the Interior. Structures of a strictly military technical nature, the disposition of which is not otherwise provided for, shall be removed by the War Department at the expiration of the need for the same, and the sites shall be restored as nearly as possible to their condition at the time of the issuance of this order.

The use of the Glacier Bay National Monument lands may be terminated at any time in the discretion of the Secretary of the Interior, subject to the approval of the President of the United States.

The jurisdiction granted by this order over the remaining public lands within the above-described areas shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, jurisdiction over such lands shall be vested in the Department of the Interior, and any other Department or agency of the Federal Government according to their respective interests then of record. Such lands, however, shall remain withdrawn from appropriation as herein provided until otherwise ordered.

Subject to limitations imposed by reason of actual military necessity, native groups and individual natives may continue to utilize the lands described in this order for hunting, trapping, fishing, and other activities upon which their livelihood depends.

This order is confidential and shall not be filed in the Division of the Federal Register, or be published in the FEDERAL REGISTER, or be given other publicity until publication thereof has been expressly authorized by or at the direction of the Secretary of War.

NOTE: Confidential status released by letter of the Secretary of War dated June 27, 1946.

ABE FORTAS,
Acting Secretary of the Interior.

SEPTEMBER 30, 1943.

[F. R. Doc. 46-13346; Filed, July 31, 1946; 4:08 p. m.]

[Public Land Order 188]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands in the following-described area are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the War Department for military purposes:

BETHEL

Beginning at a point, 60°42'30" north latitude, 162°10' west longitude.

From the point of beginning,

N. 45°00' E., 22.5 miles;

S. 45°00' E., 15 miles;

S. 45°00' W., 22.5 miles;

N. 45°00' W., 15 miles, to the place of beginning.

The area described, including both public and non-public lands, aggregates 236,000 acres.

This order shall be subject to (1) the withdrawal for the establishment of air navigation facilities made by the order of November 24, 1937, of the Secretary of the Interior (Air Navigation Site Withdrawal No. 113, Alaska), and (2) the withdrawal for the establishment of air navigation facilities and a right-of-way made by the order of April 7, 1942, of the Secretary of the Interior (Air Navigation Site Withdrawal No. 146), so far as such orders affect the public lands in the above-described area.

This order shall take precedence over but not modify the withdrawal for hospital site purposes made by the order of April 7, 1939, of the Secretary of the Interior, so far as such order affects any of the public lands in the above-described area.

This order is subject to the following conditions:

1. Fishing by civilians will be permitted within the area hereby reserved, but such civilians, resident natives excepted, must in person secure a permit to fish in designated areas and comply with the regulations of the Fish and Wildlife Service, Department of the Interior. The natives shall be allowed to continue to fish in the streams and coastal waters, hunt and trap in the area on the basis of permits to be issued by the Indian service teacher and countersigned by the Commanding Officer or his authorized subordinate.

2. The Commanding Officer will be instructed to issue orders to the military personnel and require that they comply with the Fish and Wildlife Service regulations.

3. The Fish and Wildlife Service shall have the right to construct and operate weirs and other devices in the watershed in order to facilitate continued scientific investigation of the salmon and other food fishes, so far as the exercise of such right shall not conflict with combat requirements.

4. The Fish and Wildlife Service officials will be permitted to enter the military area to enforce conservation laws in accordance with the Fish and Wildlife Service regulations. Infraction of such regulations by the military personnel will be reported to the military authorities for appropriate action.

5. No dams or barricades will be erected in the river or watershed except when dictated by military necessity. This restriction does not apply to barricades customarily erected by resident